

25STCV05620 25STCV05620

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Case Number: 25STCV05620 Hearing Date: August 28, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/28/2026

CASE NUMBER: 25STCV05620

CASE NAME: IRANI ROUZBAHNI, et al. vs GENERAL MOTORS, LLC

MOVING PARTY: Plaintiffs Irani Rouzbahni and

Anahid Chahremanians

OPPOSING PARTY: Defendant General Motors LLC

PROCEEDING: Motion for attorneys' Fees and Costs

RULING

SUMMARY: Plaintiffs Irani

Rouzbahni and Anahid Chahremanians' Motion for Attorneys' Fees and Costs is granted. Attorneys' fees are awarded in the amount of \$16,683.00, and costs are awarded in the amount of \$812.02.

Background

On

February 27, 2025, plaintiffs Irani Rouzbahni and Anahid Chahremanians (collectively

"Plaintiffs") filed their Complaint against defendant General Motors LLC

("Defendant"), alleging causes of action for (1) Breach of Implied Warranty of

Merchantability under the Song-Beverly Act; and (2) Breach of Express Warranty

under the Song Beverly Act.

Plaintiffs

allege that that on or about May 9, 2022, they purchased a 2022 Chevrolet Silverado 1500 with vehicle identification number 1 GCP ADED4NZ500311 (the "Subject Vehicle"), manufactured and/or distributed by Defendant, which came with various warranties; during the warranty period, the Subject Vehicle contained or developed various defects, including in the infotainment system, the push remote horn, and various recalls; Defendant had a duty to either promptly replace the Subject Vehicle or make restitution to Plaintiffs under the Song-Beverly Consumer Warranty Act ("Song-Beverly"); and FCA failed to do so.

On

April 22, 2026, Plaintiffs filed a declaration regarding a settlement between the parties.

On May 7,

2026, Plaintiffs filed a Motion for Attorneys' Fees and Costs, and a Memorandum of Costs.

On July

29, 2026, the Court dismissed the action without prejudice and retained jurisdiction under Code of Civil Procedure section 664.6 to enforce the settlement.

On

August 17, 2026, Defendant filed its Opposition to Plaintiffs' Motion. Plaintiffs filed no Reply.

LEGAL STANDARD

A prevailing party may recover costs, including attorneys' fees. (Code Civ. Proc., §§ 1032(a)(4), 1032(b), 1033.5.)

In Song-Beverly claims, if a buyer of a consumer good who is damaged by a failure to comply with the Song-Beverly Act prevails in an action under that section, the buyer may recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code § 1794(d).)

The fee setting inquiry in California ordinarily begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, n.23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-96.)

The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal. App. 4th 770, 774.) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.) "In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citation], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases. [Citation.]" (569 East County Boulevard, LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437.)

DISCUSSION

A.

Attorney's Fees

Plaintiffs seek attorneys' fees in the amount of \$33,585.00 [\$28,327.00 in attorneys' fees (lodestar) + \$2,425.61 (0.10 multiplier)]. They assert that they are the prevailing party, their fees

are reasonable, a multiplier is warranted due to the settlement reached, and their attorneys' rates are reasonable.

Defendant argues that the Court should reduce the time spent to those actually incurred on the following motions as follows:

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Pre-engagement work – reduce to 1.3 hours
(\$682.50);

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Review of GM's Motion for Protective Order, drafting
an Opposition, review of GM's Reply – reduce to \$0.00 due to brevity of the
motion;

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Drafting Initial Disclosures – reduction of 0.5-hour
(\$262.50);

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Review of Initial Disclosures - reduction of 0.5-hour
(\$262.50);

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Review of file for deposition – reduction of 2.6-hours
(\$1,501.00);

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Non-compensable travel time - reduce to \$0.00;

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Redundant & excessive client communications throughout
– reduction of 1.5 hours (\$1,161.50);

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Fee Motion and Motion to Tax Costs – reduction
of 17.4 hours (\$11,705.00) as this motion comprises 43 percent of counsel's
time.

Defendant argues that a multiplier is not warranted and that the Court should reduce counsel's time by 15 percent due to the amount of attorney time spent on tasks that could have been performed by a paralegal.

The correct measure for attorneys' fees is the market value of the services, and "[t]his standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel." (Nemecek & Cole v. Horn (2012) 208 Cal.App.4th 641, 651.) "Absent an arbitrary ruling, case law gives trial judges great discretion in using their knowledge and experience to assess the 'value of professional services rendered in his [or her] court,' even without the necessity of expert testimony. [Citations.]" (Marshall v. Webster (2020) 54 Cal.App.5th 275, 287 [internal citations omitted]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 ["The 'experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.'"].)

The Court has reviewed the evidence provided by both parties. The Court is also aware of the extensive use of templates in Song-Beverly cases.

Defendant does not challenge Plaintiffs' counsels' hourly rates.

Having reviewed the papers filed in support of and in opposition to Plaintiffs' Motion, and employing the Court's knowledge and experience to assess the value of professional services rendered in this case, the Court makes the following changes:

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A lodestar multiplier will not be included because, although this case was taken on a contingency fee basis, it is neither novel nor complex for a Song-Beverly case (- \$2,425.61);

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Drafting Initial Disclosures is reduced by 0.5-hours
(-\$262.50);

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Review of Initial Disclosures is reduced by 0.5
hours (-\$262.50);

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Review of GM's Motion for Protective Order,
Drafting an Opposition, Review of GM's Reply – reduction of 0.6 hours (-\$417.00);
and

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Motion for Attorneys' Fees and Costs – reduction
of 15.4 hours (-\$10,703.00).

Attorneys' fees are granted to
Plaintiffs in the amount of \$16,683.00.

B.
Costs

Plaintiff seeks the following
costs:

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Filing and motion fees – \$495.00;

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Jury Fees – \$150.00;

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Deposition Costs – \$699.00;

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Service of Process – \$41.20;

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Court Reporter Fees -- \$550.00;

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Fees for Electronic filing or service – \$125.82;
and

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Other – \$364.59.

The requested costs total
\$2,425.61.

Defendant seeks the following
reductions:

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Jury Fees – reduce to \$0.00 as no jury was used;

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Court Reporter Fees – reduce to \$0.00 as this
cost has not been incurred as it is directed at this Motion for Attorneys' Fees
and Costs;

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Deposition Costs – reduce to \$0.00 as it is
unclear who Michael Della Veccia is or how he is related to this litigation;

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Fees for Electronic Filing or Service -- \$0.00
as there is no explanation to prove their legitimacy;

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Other – reduction of \$277.04 for parking fees,
mediation, and preemptory challenge.

"If the items appearing in a cost
bill appear to be proper charges, the burden is on the party seeking to tax
costs to show that they were not reasonable or necessary. On the other hand, if
the items are properly objected to, they are put in issue and the burden of
proof is on the party claiming them as costs." (Ladas v. California State
Auto. Assn. (1993) 19 Cal.App.4th 761, 774.)

The costs that appear to be proper
are the jury fees and fees for electronic service and filing.

Plaintiffs have not filed a Reply
and, as such, have not met their burden of proof for the other costs.

Accordingly, costs are granted in
the amount of \$812.02 (unchallenged amounts + jury fee + fees for electronic
filing or service).

Conclusion

Plaintiffs

Irani Rouzbahni and Anahid Chahremanians' Motion for Attorneys' Fees and Costs
is granted. Attorneys' fees are awarded in the amount of \$16,683.00, and costs
are awarded in the amount of \$812.02.

Date: 08/28/2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court